

****22.12.2022.****

The Agency for the Protection of Personal Data has, ex officio and without prior notice, conducted a series of direct inspections regarding the processing and implementation of personal data protection in relation to the collection and processing of personal data carried out by video surveillance systems. A violation of Article 27, paragraph 1, and paragraph 2 of the Act on the Implementation of the General Data Protection Regulation has been established with ten data controllers in the gambling and betting, hospitality, and retail sectors.

One data controller failed to indicate that the premises were under video surveillance, which is contrary to Article 27, paragraph 1 of the Act on the Implementation of the General Data Protection Regulation, while nine data controllers neglected to specify all relevant information required by Article 27, paragraph 2 of the Act on the Implementation of the General Data Protection Regulation when setting up the video surveillance notice. This includes, among other things, that the area is under video surveillance, information about the data controller, and contact details through which the data subject can exercise their rights.

For the aforementioned violations, the Agency, in accordance with Article 51, paragraph 1, item 1 of the Act on the Implementation of the General Data Protection Regulation, which prescribes an administrative monetary fine of up to 50,000.00 kuna, imposed ten administrative monetary fines totaling 186,000.00 kuna.

Let us recall that Article 27, paragraph 1 of the Act on the Implementation of the General Data Protection Regulation stipulates that the data controller or processor is obliged to indicate that the premises or individual rooms within them and the external surface of the building are under video surveillance, and the notice must be visible at the latest upon entering the recording perimeter, while paragraph 2 specifies what the notice must contain.